

HOUSE No. 4052

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act sparking the construction of 21st century buildings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/17/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/24/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/12/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/19/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/24/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/12/2026</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/20/2026</i>

HOUSE No. 4052

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 4052) of Tommy Vitolo and others relative to a specialized stretch energy code. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act sparking the construction of 21st century buildings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6 of chapter 25A of the General Laws, as amended by section 19 of
2 chapter 239 of the acts of 2024, is hereby further amended by striking out clauses (14) and (15)
3 and adding the following 4 clauses:-

4 (14) develop and promulgate pursuant to chapter 30A, in consultation with the state board
5 of building regulations and standards, a municipal opt-in specialized stretch energy code that
6 includes, but is not limited to, net-zero building performance standards and a definition of net-
7 zero building, designed to achieve compliance with the commonwealth's statewide greenhouse
8 gas emission limits and sublimits established pursuant to chapter 21N;

9 (15) develop and promulgate, regulations, criteria, guidelines and standard conditions,
10 criteria and requirements that establish parameters for the siting, zoning, review and permitting
11 of small clean energy infrastructure facilities by local government pursuant to section 21;

(16) develop and incorporate into the specialized stretch energy code developed and promulgated pursuant to clause (14), in consultation with the board of building regulations and standards, requirements for mandatory solar photovoltaic panel installation for all buildings deemed suitable for installation by the department. Develop and incorporate into the stretch energy code requirements for buildings to be made photo voltaic ready for all buildings deemed suitable for future installation by the department; and

(17) the specialized stretch energy base code shall include all provisions of the stretch energy code related to the latest International Energy Conservation Code, together with any more stringent energy-efficiency provisions promulgated more than 36 months prior.

SECTION 2. Section 139 of chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 99 and 100, 137 and 138 and 145 and 146, the words “that are not net metering facilities of a municipality or other governmental entity”.

SECTION 3. Notwithstanding any general or special law to the contrary, any undertaking by a federal, state, county, municipal or quasi-governmental public agency for the planning, acquisition, design, construction, demolition, installation, repair or maintenance of a structure shall comply with the requirement of the specialized stretch energy code, as developed and promulgated pursuant to clause (14) of section 6 of chapter 25A of the General Laws.